



INTERIM FEE AWARD ORDER

(DIVORCE)

IN THE STATE OF ILLINOIS, CIRCUIT COURT

☐ Pre-Judgment ☐ Post-Judgment

COUNTY:

County Where You Are Filing the Case

PETITIONER:

Who started the case. First, Middle, and Last Name

RESPONDENT:

Who the case was filed against. First, Middle, and Last Name

Case Number

☐ A non-evidentiary hearing ☐ An evidentiary hearing was held on the Petition of ☐ Petitioner ☐ Respondent seeking an award of interim attorney's fees and costs under [750 ILCS 5/501\(c-1\)](#);

The court has jurisdiction over the parties and subject matter; the court reviewed the Petition, affidavit(s) and responsive pleading, if any, and considered all relevant factors; the court finds:

- A. ☐ The party from whom attorney's fees and costs are sought has the financial ability to pay reasonable amounts, and the party seeking attorney's fees and costs lacks sufficient assets or income to pay reasonable amounts.
- ☐ Alternatively, both parties lack financial ability or access to assets or income for reasonable attorney's fees and costs.
- B. This award of interim attorney's fees and costs to the petitioning party is reasonable and in an amount necessary to enable that party to participate adequately in the litigation.
- C. This interim fee award is ☐ by agreement of the parties ☐ not by agreement of the parties.

The Court orders:

1. An interim fee award of \$_____ is entered in favor of ☐ Petitioner ☐ Respondent, to be paid by ☐ Petitioner ☐ Respondent or, in cases of disgorgement, by ☐ _____
Attorney or Law Firm to the petitioning party's counsel for reasonable fees and costs within _____ days.
2. The assessment of any interim fee award is without prejudice to any final allocation and without prejudice as to any claim or right of either party or any counsel of record at the time of the award.
3. Unless otherwise ordered by the court, interim awards, and all other payments by each party to counsel and related payments to third parties, shall be deemed to have been advances from the parties' marital estate.
4. Any portion of any interim award constituting an overpayment shall be remitted back to the appropriate party(s) or, alternatively, to successor counsel, as the court determines and directs after notice.
5. Other: _____

ENTERED:

Judge

Date (Month, Day, Year)

This form is approved by the Illinois Supreme Court and must be accepted in all Illinois Courts. Forms are free at ilcourts.info/forms.